



Fraud Management Policy

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1. Introduction

This Fraud Management Policy addresses the prevention, detection and stopping of fraud at Trent Education Centre (TEC) in relation to potential, alleged or actual cases of fraud. The policy covers everything that staff, governors, members of the Audit and Risk Committee and students need to know about how TEC manages fraud, including the processes and resources required to address fraud appropriately.

2. Definition

Fraud is the attempt to gain an unfair advantage through wilful and illegal methods of deceit which result in one or more people suffering loss or the risk of loss. This definition may apply to individuals or a whole organisation. According to the Fraud Act 2006, fraud is committed when a person dishonestly and with intent to gain, cause loss, or expose another to the risk of loss, engages in one of the following three offences:

False representation

This includes forging documents or signatures, impersonating another person, falsifying documents or intentionally submitting false data such as incorrect expenses claims, incorrect staff or student data or financial information, or submitting work and claiming that it is your own (plagiarism).

Failing to disclose information

This includes not informing others about any actual or potential conflicts of interest that may impact on your ability to make an objective decision, failing to inform others that you are making decisions that will affect a close friend or relative, or ignoring evidence that shows academic misconduct has occurred.

Abusing a position

This includes taking advantage of an opportunity you may have for personal gain through deceptive and illegal means such as embezzlement, misappropriation of funds or misuse of public funds. It may also include accepting bribes in return for favours, showing favouritism to a relative, or nepotism if you are in a position to give anyone an unfair advantage.

3. Statutory and Regulatory Context

This policy ensures that TEC meets its legal obligations under the Fraud Act 2006, which states that organisations must have systems that reduce the risk of staff, students, contractors, or partners committing fraud-related offences including false representation, failure to disclose information, abuse of position, obtaining services dishonestly or possessing articles of use in fraud, such as a false ID. This legislation has been extended by the Economic Crime and Corporate Transparency Act 2023 to include inaction or failure to prevent fraud as a criminal offence in addition to actively perpetrating acts of fraud.

TEC has applied to become a registered provider of designated higher education with the **Office for Students (OfS)**. Although TEC is not registered with the OfS, this Fraud Management Policy has been developed to ensure that TEC is in a position to comply with OfS condition of registration E8.2 which states that a provider must have comprehensive arrangements in place for detecting, preventing and stopping fraud or the inappropriate use of public funds. In compliance with condition E8.3, TEC has separate policies on Conflict of Interest, Anti-Bribery and Corruption, Whistleblowing, and a Risk Register. In complying with E8.3, the Fraud Management Policy also includes a set of clear processes for ensuring the accuracy of data submitted internally and in external reports, staff training on data accuracy and integrity, fraud prevention, detection, reporting and the allocation of staff to designated roles in relation to all aspects of fraud management.

4. Purpose and Scope

This policy provides all stakeholders including staff, students, governors and independent members of the TEC Audit and Risk Committee with clear guidance and information on how TEC manages fraud. It ensures that all stakeholders understand how to remain continuously vigilant in the prevention, detection and stopping of fraud. It sets out what individuals can and should do if they suspect fraud including how to make an allegation of fraud and what happens when allegations are made. The policy defines and explains the different types of fraud that might occur at TEC and how their effects are mitigated should fraud occur.

5. Aims and Objectives

TEC's Fraud Management Policy aims to ensure that Fraud prevention is effective and if fraud occurs, it is detected early and stopped instantly. This policy also aims to ensure that any harm or loss caused by fraud is mitigated and prevented from reoccurring. These aims are achieved by ensuring the following:

- All stakeholders understand the three types of fraud (See the Definition above) and how to remain vigilant so that fraud is prevented and detected early
- All stakeholders know how to report potential fraud or to make an allegation of fraud
- All stakeholders are aware of the consequences of committing fraud
- All stakeholders know that fraud is a criminal offence and that fraud allegations may be investigated by the police
- All stakeholders participate in training about fraud prevention and detection
- All stakeholders are reassured that they may report fraud or suspicion of fraud without fear of repercussions
- Allegations of fraud are promptly investigated
- Disciplinary action is taken if fraud has been committed
- The process of fraud detection, reporting and investigation is monitored and evaluated with recommendations for future improvements

6. Preventing Fraud

Fraud prevention at TEC is based on robust internal controls, separation of responsibilities, transparent decision-making, and a culture of accountability. The HR Manager ensures that all staff and stakeholders complete Fraud Awareness and Protection Training annually. The following measures apply to all staff, senior management team members, board members and any other stakeholders.

Type of Fraud	Prevention
False Representation	All documentation must be checked by more than one person. Admissions staff must verify original certificates, passports, visas, and residency documents before students are enrolled. The HR Manager must see original qualifications, right-to-work documents, employment history and two references before recruitment of job applicants. Proof of addresses must be checked alongside proof of ID. ENIC/Eccit may be used to check and verify the UK equivalence of international certificates. Staff may follow up with GP surgeries regarding medical documents. All financial claims for expenses, invoices or procurement must be signed off by two senior members of staff giving dual authorisation. Falsifying of documents is regarded as gross misconduct and in these cases, TEC may contact the authorities who may conduct a police investigation.
	• Only authorised staff may enter or amend data in MIS, HR, or finance systems • All data submitted to external bodies (e.g., OfS, HESA, awarding bodies) must undergo accuracy checks before submission. • All student and staff data entered into the TEC MIS systems must be verified by two staff and audited by or on behalf of the Audit and Risk Committee (ARC) for accuracy.
Failing to disclose information	Refer to the TEC Conflict of Interest Policy on disclosure of conflicts and the register of declared interests. All staff; Senior Management Team members, board and committee members must declare their interests before participating in any discussion or decision. The Secretary of the Board of Governors maintains the Register of Interests and the annual declaration of interest forms, which are completed by all Board members. No individual may participate in any decision if they have personal, financial or family interest. All relationships must be disclosed to ensure impartiality.
	• All staff involved in admissions, assessment, procurement, or recruitment must complete annual declarations confirming they have no undeclared conflicts. • The ARC conducts an annual audit of the Register of Interests and all disclosures of interest.

Type of Fraud	Prevention
Abusing a position	All staff, board and committee members are required to read and comply with the TEC Anti-Bribery and Corruption Policy. Any procurement requires at least two quotations and must be signed off by at least two Senior Management Team members or their nominees. No staff or stakeholder may agree or authorise any payment to themselves or their relatives. Only authorised staff may have access to financial systems including bank access and petty cash. All staff, board and committee members are encouraged to report any abuse of position they witness without fear of repercussions in accordance with the TEC Whistleblowing Policy. Any evidence of financial or academic misconduct must be reported to the Fraud Panel. See Reporting Fraud below.
	• All financial transactions must have a clear audit trail, including supporting documentation, authorisation records, and system logs. • Where possible, duties involving financial authorisation, procurement, or data entry are rotated periodically to reduce the risk of collusion or abuse of position. • The ARC conducts an annual audit of financial controls, procurement and staff promotions for any irregularities that may indicate possible fraud has occurred or is occurring.

7. Examples of Possible Fraud

Who	What
Governors	Fail to disclose a conflict of interest or fail to disclose information that may mean they are not a fit and proper person for the Board. Use their position to secure contracts for suppliers or partners at their own personal gain. Support or turn a blind eye to the misuse of public funds. Failure of fiduciary duty; to act in the best interests of TEC.
Staff	Give false documents at their own recruitment. Use their position to secure jobs or promotion for a friend or family member. Make false expenses claims or claims for hours they have not worked. Embezzlement or misuse of funds. Accepting bribes for higher grades or other benefits (see the Anti-Bribery and Corruption Policy). Writing assignments for students for payment or other advantages. Misuse of TEC property or equipment. Unauthorised access to MIS or financial systems.
Students	Giving a false identity at enrolment. Falsifying records of attendance. Plagiarism or other forms of academic misconduct (See the Academic Misconduct Policy). Submitting falsified medical documents or mitigating circumstances claims.

8. Data Controls

TEC ensures that all data it submits to external bodies/organisations including the Office for Students, HESA, Student Loans Company, partner organisations and awarding organisations/bodies is accurate and complete. All data sent to external bodies/organisations must be compiled by two trained staff. Further, the Head of the relevant function must check the quality of the compiled data before it is submitted to an external body as follows:

Head who conducts quality checks	Data
Head of Partnerships and Compliance	HESA Student Record
	HESA Discover Uni Record
	HESA Provider Profile
	HESA Aggregate Offshore Return
	Student data for partner organisations (Franchise or Validation)
Finance Manager	HESA Finance Record
	Annual Financial Return (AFR)
	Annual Financial Statement (AFS)
Head of Operations/HR Manager	Estates and resources
	HESA Staff Record
Head of Safeguarding	Prevent Accountability and Data Return
	Safeguarding
Head of Admissions	Student admissions and enrolment
Head of Higher Education	Assessments and external examiners and moderators
Head of Quality	Continuation and completion data
Managing Director	Reportable Events

9. Reportable Events

TEC is not currently required to submit reportable events to the Office for Students (OfS) because TEC is not currently registered with the OfS. Once TEC becomes registered with the OfS, it will need to submit reportable events which includes Fraud committed by a member of the Board of Governors, Audit and Risk Committee, Remuneration Committee or the Senior Management Team. Any Fraudulent event committed by other staff does not need to be reported unless it is above 2% of TEC's total income for the year.

10. Reporting Fraud

Any whistleblower who reports an allegation of fraud will come under the protection of the Public Interest Disclosure Act 1998 and the TEC Whistleblowing Policy. Students should report suspected fraud to their Tutor. If they are concerned about their Tutor, they may report it to the Programme Leader and if they are concerned about the Programme Leader, they may report it to the Head of Higher Education.

Staff should report suspected fraud to their line manager unless their line manager is a suspect in which case they report upwards to the Executive Principal or Managing Director. If, for example, a Tutor wishes to report a bribe received by the Programme Leader, they may report it to the Head of Higher Education. If they believe that the Head of Higher Education is involved and has also received a bribe, they should report it to the Executive Principal. If the EP is also a suspect they can report it to the Managing Director and/or an independent member of the Audit and Risk Committee of Chair of the Board of Governors.

Any board or committee member should report a case of fraud either to the Chair, the Managing Director or any other Board member in that order. Once an allegation of fraud has been reported it must be submitted to the Fraud Panel withing 24 hours (See Investigating Fraud below).

11. Investigating Fraud

The person who receives the reported allegation of fraud must pass it to the Fraud Panel (FP) within 24 hours. This panel consists of the following members:

- Executive Principal (EP) (Chair)
- Head of Higher Education (HHE) (Vice-Chair)
- Head of Partnerships and Compliance (HPC) (Vice-Chair)
- Head of Operations (HO)
- Head of Admissions (HA)
- Head of Quality (HQ)
- Head of Business Development (HBD)

The Fraud Panel can meet with a minimum of three members including either the Chair or the Vice-Chair. If any member of the panel is a suspect of the fraud allegation, they must recuse themselves from the FP. In the absence of the EP, HHE and HPC, the HO, HA, HQ or HBD will become Chair and Vice-Chair in that order.

The FP will consider the allegation, conduct some preliminary investigation and decide on one or more of the following actions:

- Inform the Police
- Conduct a deeper investigation
- Dismiss the Allegation
- Suspend the suspect depending upon the severity of the allegation and the degree of risk

If a deeper investigation is required, the FP will appoint one of its members, the Fraud Investigator (FI) to conduct it. The FI may call a hearing where the allegations can be discussed, and each party can submit evidence. If the Police are involved, the FP investigation will stop until the Police have reached their conclusions.

Following the deeper investigation, the FI may decide on one of the following:

- Inform the Police
- Find the accused guilty
- Issue the perpetrator a formal warning and require them to apologise
- Suspend or expel the perpetrator depending upon the severity of the case
- Dismiss the Allegation

12. Communicating with Media

Should a Fraud investigation be a matter of public interest, TEC applies the same principles and procedures when it communicates with the media as those detailed in the TEC Contingency and Adverse Effects Policy.

13. Training

All staff must complete Fraud Awareness and Protection Training, and this is monitored by the HR Manager reporting to the Head of Operations.